

HOUSE No. 1706

The Commonwealth of Massachusetts

PRESENTED BY:

William C. Galvin

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to encourage quality reviews and reduce costs in health care.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>William C. Galvin</i>	<i>6th Norfolk</i>	<i>1/10/2025</i>

HOUSE No. 1706

By Representative Galvin of Canton, a petition (accompanied by bill, House, No. 1706) of William C. Galvin for legislation to encourage quality reviews and reduce costs in health care. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1502 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to encourage quality reviews and reduce costs in health care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section (1)

2 Chapter 111 of the General Laws is hereby amended by inserting at the end of section
3 204 the following :

4 (f) The provisions of this section shall apply to any committee formed by an individual
5 health care provider, physician group practice, licensed health care facility or any combination
6 thereof to perform the duties or functions of medical peer review as set forth in section one of
7 this chapter, notwithstanding the fact that the formation of the committee is not required by law
8 or regulation or that the individual, group or facility is not solely affiliated with a public hospital
9 or licensed hospital or nursing home or health maintenance organization.

10 Section 2

11 Chapter 231: Section 60K of the General Laws is hereby amended by its deletion and
12 replacement with the following: Section 60K. In any action for malpractice, negligence, error,
13 omission, mistake or unauthorized rendering of professional services against a provider of health
14 care, in which a verdict is rendered or a finding made or an order for judgment made for
15 pecuniary damages for personal injuries to the plaintiff or for consequential damages, there shall
16 be added by the clerk of the court to the amount of damages interest thereon, at a rate to be
17 determined as set forth below rather than the rate specified in section 6B of chapter 231, from the
18 date of the commencement of the action even though such interest brings the amount of the
19 verdict or finding beyond the maximum liability imposed by law. For all actions commenced
20 after the effective date of this act, the rate of interest to be applied by the clerk shall be at a rate
21 equal to the weekly average 1-year constant maturity Treasury yield plus 2 per cent, as published
22 by the Board of Governors of the Federal Reserve System for the calendar week preceding the
23 date of judgment. At no point shall the rate of interest established by this section exceed the rate
24 of interest set forth in said section 6B of chapter 231.

25 Section 3

26 Chapter 231: Section 60 of the General Laws, is

27 hereby amended at the end thereof with the addition of the following new section:

28 Section 60 M:

29 In any action for malpractice, negligence, error, omission, mistake or unauthorized
30 rendering of professional services, against a provider of health care, the plaintiff cannot recover

for loss of an opportunity to survive or an opportunity to achieve a better result unless the opportunity was greater than 50%. In addition the plaintiff shall have the burden of proving the following:

(1) The recognized standard of acceptable professional practice in the profession and the specialty thereof, if any, that the defendant practices in the community in which he practices or in a similar community at the time the alleged injury or wrongful action occurred;

(2) That the defendant acted with less than or failed to act with ordinary and reasonable care in accordance with such standard; and

(3) As a direct and proximate result of the defendant's negligent act or omission, the plaintiff suffered injuries which would not otherwise have occurred.

(4) The plaintiff was a patient of the defendant and had a professional relationship to the defendant which created a duty of care on the defendant's part or where the plaintiff is a reasonably identifiable victim of the patient of a defendant psychotherapist to whom the patient communicated a serious threat of physical violence against the plaintiff.

Section 4

Chapter 93A Section 9 paragraph 3 of the General Laws is hereby amended by the deletion of the following sentence : "For the purposes of this chapter, the amount of actual damages to be multiplied by the court shall be the amount of the judgment on all claims arising out of the same and underlying transaction or occurrence, regardless of the existence or nonexistence of insurance coverage available in payment of the claim." and the insertion of the following in its place: "For the purposes of this chapter, the amount of actual damages to be

52 multiplied by the court shall not be the judgment on the underlying claims but shall be the
53 judgment interest applied to the judgment by the courts, regardless of the existence or
54 nonexistence of insurance coverage available in payment of the claim."